

Track 1 — Chapter Build Pass

MPEP Chapter 1200 · Appeal to the Patent Trial and Appeal Board

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: The Appeal Pipeline

Chapter 1200 is a linear procedural pipeline — Notice of Appeal, appeal brief, Examiner's Answer, optional reply brief, optional oral hearing, PTAB decision — and the exam likes testing the deadlines and consequences of missing them at each stage.

Rule 1: When an Appeal is Available (§1204)

PLAIN ENGLISH

An applicant may appeal to the **Patent Trial and Appeal Board (PTAB)** after a claim has been **twice** (or finally) rejected — typically this means after a final rejection, or after the same claim has been rejected in two Office actions, even if not technically "final." A Notice of Appeal must be filed, followed by an appeal brief.

EXAMPLE

After a final rejection on the merits, rather than filing an RCE or further amendment, an applicant may file a Notice of Appeal to begin the PTAB appeal process instead of continuing prosecution before the examiner.

QUIZ

Appeal to the PTAB is generally available after a claim has been:

- (A) Rejected only once, regardless of finality
- (B) Twice or finally rejected
- (C) Allowed but not yet issued
- (D) Amended by the examiner

Rule 2: Notice of Appeal & Appeal Brief Timing (§1204.01, §1205.01)

PLAIN ENGLISH

After filing a Notice of Appeal (with the appeal fee), the applicant must file an **appeal brief** within a set period (with extensions available similar to standard Office action responses, up to the statutory maximum) laying out the arguments for why the rejections should be reversed. Failure to timely file the brief results in dismissal of the appeal, and the application is treated as if the appeal was never filed (typically leading to abandonment if no other response is on file).

EXAMPLE

An applicant files a Notice of Appeal but then fails to file the appeal brief within the response period, even after extensions. The appeal is dismissed, and absent another pending, timely response, the application becomes abandoned.

QUIZ

What happens if an applicant fails to timely file the appeal brief after filing a Notice of Appeal?

- (A) The rejections are automatically reversed
 - (B) The appeal is dismissed, risking abandonment
 - (C) The examiner must refile the rejection
 - (D) The application is automatically allowed
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Rule 3: Examiner's Answer & Reply Brief (§1207, §1208)

PLAIN ENGLISH

After the appeal brief, the examiner may respond with an **Examiner's Answer**, which can restate the rejections or add new grounds (if properly designated as such, which reopens prosecution options for the applicant). The applicant may then file a **reply brief** responding to the Examiner's Answer — but new arguments/evidence generally can't be raised for the first time at this stage without good cause.

EXAMPLE

If an Examiner's Answer includes a new ground of rejection not previously raised, the applicant gets additional options in response — including reopening prosecution before the examiner rather than proceeding straight to PTAB review — because a new ground changes the procedural posture.

QUIZ

If an Examiner's Answer includes a properly designated new ground of rejection, what does this typically give the applicant?

- (A) Nothing additional — the appeal proceeds unchanged
- (B) Additional response options, potentially including reopening prosecution
- (C) Automatic allowance of all other claims
- (D) The right to refile as a new application only

Rule 4: Oral Hearing (§1209)

PLAIN ENGLISH

An applicant may request an **oral hearing** before the PTAB panel (typically 3 administrative patent judges) to argue the appeal, for an additional fee, filed within a set period after the reply brief (or after the Examiner's Answer if no reply brief). Oral hearing is optional — the appeal can be decided on the briefs alone if not requested.

EXAMPLE

An applicant believes the written briefs alone don't fully convey why a key distinction over the prior art matters, so they request and pay for an oral hearing to argue the point directly to the PTAB panel.

QUIZ

Is an oral hearing before the PTAB mandatory for every appeal?

- (A) Yes, always required
- (B) No — it's optional, requested (with a fee) by the applicant
- (C) Only required for design patent appeals
- (D) Only available if the examiner requests it

Rule 5: PTAB Decision Outcomes & Next Steps (§1214)

PLAIN ENGLISH

The PTAB can **affirm** (uphold) the rejection, **reverse** it, affirm-in-part/reverse-in-part, or enter a **new ground of rejection** itself. If any rejection is affirmed, the applicant may request rehearing, appeal further to the Federal Circuit (or file a civil action), or reopen prosecution (e.g., via RCE) rather than pursuing further appeal.

EXAMPLE

If the PTAB affirms a rejection, the applicant isn't out of options — they can request PTAB rehearing, appeal to the Federal Circuit, or simply go back to the examiner via an RCE with amended claims instead of continuing the appellate route.

QUIZ

If the PTAB affirms a rejection, what happens to the applicant's options?

- (A) The application is immediately and finally abandoned with no further options
 - (B) The applicant may seek rehearing, appeal further, or reopen prosecution (e.g., via RCE)
 - (C) Only a completely new application can be filed
 - (D) The rejection can never be revisited
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A claim has received only one, non-final rejection. Can the applicant appeal to the PTAB now?

- (A) Yes, appeal is always available
- (B) No — the claim must be twice or finally rejected first
- (C) Only with Director permission
- (D) Yes, but only for design applications

2. An applicant files a Notice of Appeal but misses the appeal brief deadline (including extensions). What is the most likely consequence?

- (A) Automatic reversal of the rejection
- (B) Dismissal of the appeal, risking abandonment
- (C) An automatic 6-month extension
- (D) The examiner must withdraw the rejection

3. An Examiner's Answer restates the same rejections with no new grounds. What is the applicant's typical next step, if pursuing appeal?

- (A) File a reply brief responding to the Examiner's Answer
- (B) Automatically win the appeal
- (C) File a new application
- (D) Request a certificate of correction

4. Is oral hearing required to have an appeal decided by the PTAB?

- (A) Yes, always
- (B) No, appeals can be decided on the briefs alone
- (C) Only for chemical cases
- (D) Only if the examiner requests it

5. True or False: If the PTAB affirms all rejections, the applicant has no further options and the application is immediately abandoned.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- Appeal available after claim is **twice or finally rejected**.
- Missing the **appeal brief deadline** after a Notice of Appeal → dismissal, risking abandonment.
- Examiner's Answer with a properly designated **new ground** gives the applicant added options (e.g., reopening prosecution).
- **Oral hearing** is optional, fee-based, applicant-requested — not mandatory.
- PTAB outcomes: affirm, reverse, affirm/reverse-in-part, or new ground. Affirmance still leaves rehearing, Federal Circuit appeal, or RCE as options.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: When an Appeal is Available (§1204)

Appeal to the PTAB is generally available after a claim has been:

Answer: B

The twice-or-finally-rejected standard is the trigger for appeal eligibility — a single non-final rejection alone doesn't yet support an appeal.

Rule 2: Notice of Appeal & Appeal Brief Timing (§1204.01, §1205.01)

What happens if an applicant fails to timely file the appeal brief after filing a Notice of Appeal?

Answer: B

A timely appeal brief is required to keep the appeal alive — missing that deadline dismisses the appeal, typically leading to abandonment absent other action.

Rule 3: Examiner's Answer & Reply Brief (§1207, §1208)

If an Examiner's Answer includes a properly designated new ground of rejection, what does this typically give the applicant?

Answer: B

A new ground of rejection in an Examiner's Answer is treated differently from a mere restatement — it opens up procedural options for the applicant that a simple restatement wouldn't.

Rule 4: Oral Hearing (§1209)

Is an oral hearing before the PTAB mandatory for every appeal?

Answer: B

Oral hearing is applicant-elected and fee-based — appeals can and often are decided on the written record alone without one.

Rule 5: PTAB Decision Outcomes & Next Steps (§1214)

If the PTAB affirms a rejection, what happens to the applicant's options?

Answer: B

An affirmed rejection doesn't end the road — applicants retain multiple paths forward, including simply returning to examination via RCE rather than pursuing judicial review.

Chapter Close-Out Quiz

1. (B)

A single non-final rejection doesn't satisfy the twice-or-finally-rejected trigger for appeal eligibility.

2. (B)

Missing the appeal brief deadline dismisses the appeal and typically leads to abandonment absent other pending responses — a hard procedural deadline.

3. (A)

A reply brief is the applicant's standard response to an Examiner's Answer that doesn't add new grounds.

4. (B)

Oral hearing is optional and fee-based; plenty of appeals are decided purely on the written briefs.

5. (B) False

Even after an affirmance, applicants retain options: rehearing, further appeal, or reopening prosecution (e.g., via RCE) — it's not a dead end.